

Court No. - 21

Case :- WRIT - C No. - 47898 of 2014

Petitioner :- Balak Ram

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- P.K. Kashyap

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner and Sri Kesarwani holding brief of Sri Baleshwar Chaturvedi for the respondents no.2 and 3.

The petitioner is aggrieved on account of an electric wire obstructing his constructions.

Learned counsel for the petitioner submits that the petitioner is prepared to make the deposits and the charges whatever are required for such adjustments shall be paid by the petitioner.

Sri Kesarwani submits that the petitioner's construction indicates some projection on the street which may also be unauthorized. However, if the petitioner is prepared to make any payments, his request may be considered by the competent authority.

Consequently, the respondent no.3 shall examine the request of the petitioner in accordance with law and then proceed to pass appropriate orders or issue necessary directions to the Executive Engineer concerned for passing such appropriate orders as per Electricity Supply Code, 2005.

With the said observations, this writ petition is disposed of.

Order Date :- 8.9.2014

Anand Sri./-